

Rent Reviews for CityFHEPS, FHEPS, and SOTA Programs Frequently Asked Questions (FAQ)

What is a Rent Review?

The Department of Social Services (DSS) verifies that rents for apartments in New York City that are subsidized through the CityFHEPS, FHEPS, and SOTA programs:

- Do not exceed rents for comparable unsubsidized apartments in the same building or neighborhood, and
- Do not exceed the maximum rent permitted for rent-subsidized apartments.

Why is a Rent Review done?

Rent reviews protect tenants from excessive rent and safeguard taxpayer dollars by ensuring fair market value.

When is a Rent Review done?

Rent reviews must be completed on units offered for clearance **before** applications for (including but not limited to) CityFHEPS To Stay/To Move (including transfers), FHEPS To Move (including transfers), and SOTA are submitted to DSS. Applications must pass the rent review before submission. Rent reviews may also be required at subsidy or lease renewal.

How do I request a Rent Review?

Landlords, Brokers, and Providers offering an apartment or preparing a new subsidy application on behalf of a client, go to <https://a071-dhsapps.nyc.gov/apartmentoffers/> and enter the required information.

Information collected as part of the standard subsidy renewal or lease renewal process will be used to complete rent reviews.

What is the Rent Review Process?

- DSS first conducts a data match with the New York State Division of Housing and Community Renewal (HCR) to identify **rent-stabilized apartments** and their maximum legal rent. The rent may not exceed the maximum rent allowed.
- For **market-rate apartments** (apartments found as not rent stabilized in the HCR match), DSS compares proposed rents to the rents currently charged for comparable apartments in the area. This rent reasonableness test is done using www.affordablehousing.com, a web-based tool that complies with Federal rules.

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Frequently Asked Questions (FAQ) *(continued)*

What if the tenant is remaining in the same unit?

If the tenant is applying for CityFHEPS, their application must include a rent review result. Providers must go to <https://a071-dhsapps.nyc.gov/apartmentoffers/> and enter the required information including contact information, apartment information, utility information, and asking rent. Offers submissions with missing or inaccurate information will require resubmission. After the unit passes the rent review, the result form will be emailed to the contact provided in the Offers submission. You must include this form with the CityFHEPS application before submitting it to DSS.

How long does a rent review take?

The HCR data match can take up to up to 3 weeks.

If the application is for a client moving into a new apartment, the property will be checked for violations and if it passes, the results of the property review will be returned even if the rent review is still pending. This is so that the provider can proceed with the walkthrough. The rent review will be completed after the data match with HCR. Afterwards, a new results form is sent automatically to return the rent review results.

If the client is remaining in the same apartment, the results form will only include the rent review results.

Important – when the client is moving into a new apartment

If an apartment passes the property violations check, the provider should proceed with scheduling the walkthrough. Do not wait for the rent review **result**.

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Frequently Asked Questions (FAQ) *(continued)*

What happens if I received a rent review fail result?

If the rent proposed at the time of Apartment Offers submission exceeds the maximum legal rent or the rent is determined to be not reasonable for the area, the unit will fail the rent review. The results form will include the maximum allowable rent that can be charged based on the HCR data or rent reasonableness test.

For a new subsidy or transfer request the submitter may accept the allowable rent or submit documentation that supports their proposed rent.

- For rent-stabilized apartments – Email rentreview@hra.nyc.gov to accept the allowable rent or submit documentation showing the rent that you are charging is allowed.
- For market-rate apartments - Email rentreview@hra.nyc.gov to accept the allowable rent or submit the [Rent Comparable Form \(DSS-35\)](#) with details on 3 similar units to support your proposed rent.
- At subsidy or lease renewal, DSS will compare renewal rent amounts to the HCR maximum legal rent for that unit.
- Rents will not be allowed to exceed the HCR maximum legal rent and will be lowered to the HCR maximum if necessary.
- If it is a market-rate apartment and the requested rent exceeds the reasonable amount, the staff working on the renewal application will notify the landlord and provide instructions on how to accept the allowable rent or submit the DSS-35 to DSS.

Can a landlord/owner charge tenants more than the approved Contract Rent?

No. Tenants must be charged only the amount authorized by DSS. Unauthorized side payments or “side deals” for rent must be refunded to the tenant. These types of side deals may adversely affect the landlord’s future participation in the program.